



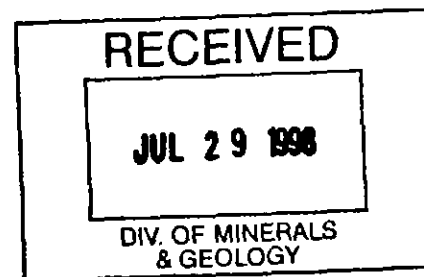
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ST. VRAIN VALLEY COMMUNITY WATCHDOGS

July 25, 1998

Ram N. Seetharam
 Stationary Sources Program
 Air Pollution Control Division
 Colorado Department of Public Health and Environment
 4300 Cherry Creek Drive South, APCD-SS-B1
 Denver, CO 80246-1530



Reference: Proposed project by Southdown, Inc.

Dear Mr. Seetharam:

The St. Vrain Valley Community Watchdogs and the citizens of the St. Vrain valley are appalled by the permit that may be issued to increase the already unacceptable and excessive levels of particulates emitted by the Southdown Corporation. We are a community organization of more than 100 associates, and we are unequivocally opposed to this permit application.

The seriousness of the permit application warrants a public meeting to be held in this community for the purpose of clarifying the points/issues listed below. Representative of the Colorado Department of Public Health and Environment and the Air Pollution Control Division should be available to hear first hand our side of the story. We live here, and we breath the foul fugitive dust emissions from this corporation every day of our lives.

The permit should not be modified or approved without thorough review and participation by the citizens of this community. (What is the rush?!) The following are points that should be carefully explored prior to a public forum and prior to any action that is taken on Southdown's permit application:

1. The attached photo (summer 1998) illustrates a persistent dust storm which is generated by a "housekeeping problem" at Southdown which impacts the local residential population and undoubtedly a larger population as well. Officials at Southdown, including Mr. Heintz, Vice-President of Environmental Affairs in Houston, acknowledged that the fugitive dust in the photograph is the result of a housekeeping problem at the plant that has not been resolved. Has this dust been included in the total emission figures?

2. In response to citizens' complaints about the impact of Southdown's fugitive dust on

the health of the residents of this community, several government agencies have become involved in scrutinizing the company and are beginning to resolve the dust issue:

The Boulder County Land Use Commissioners
The Boulder County Health Department
The Colorado Department of Public Health and the Environment
The Air Quality Control Commission
The United States Environmental Protection Agency

In response to citizens' concerns, Senator Ben Nighthorse Campbell initiated an inquiry through the USEPA into the fugitive dust emissions at Southdown. Mr. William P. Yellowtail, Regional Administrator for the USEPA informed us that: "Fugitive dust is a serious problem because of the impacts it can have on respiratory functions and visibility. New national Ambient Air Quality Standards for particulate matter will help to safeguard the air quality in Lyons. EPA, Region 8 will continue to monitor the situation for continued progress."

Progress has been made, but, **unfortunately**, there has been no resolution of this fugitive dust issue as yet. Southdown's application to discharge an additional 10 tons of PM-10 per year may only complicate this issue further. Action on Southdown's permit application should remain pending until the resolution of this scrutiny takes place.

3. The size of increase of production has not been stipulated: Mining activities, blasting, customer traffic, etc. What percent of increase is this?
4. Current emissions are not stipulated.
5. Increase in production will emit 10 tons of PM-10 particulate emissions per year. Current and actual PM-10 emissions are not specified. What percent increase is this?
6. Total emissions will increase by 20 tons per year. Current and actual TSP has not been stipulated. What percent increase is this?
7. If production increases, more saleable products will be made. Therefore, there could be an increase in the number of trucks entering and exiting the plant to buy and to haul products. This could likely result in increased truck exhaust emissions (PM 2.5 increase) and possibly an intolerable truck congestion on Route 66 and Route 36. **In response to public outcry, The Boulder County Land Use Commissioners have been very concerned about increasing truck traffic (exclusive of total vehicles) on Route 66 and Route 36.**
8. Regarding proposed changes to decrease emissions:
 - A. What exactly is an "underground reclamation system?"

B. Reduction of emissions resulting from closer hauling distance and any reclamation activities is not specified. How much reduction?

C. The dust emissions generated from increased mining activity required for increased plant production (as proposed) are not clearly factored into proposed permit analysis.

9. There are no known monitoring stations in the immediate area other than on Southdown's stack. How can this, therefore, be considered an attainment area?

The Boulder County Health Department has proposed installation of an air quality monitoring station in this community. The Boulder County Land Use Commissioners have designated a station for this community as a condition of the permit for Western Mobile's future mining operation. These have not as yet been installed to monitor current conditions.

The St. Vrain Valley Community Watchdogs are so thankful to **Vickie Patton, attorney for the Environmental Defense Fund** in Boulder for sending us a copy of Southdown's permit application. We received the application in the mail on July 22nd. That evening three members of our organization spoke at an "Air Your Views" session sponsored by The Regional Air Quality Council (RAQC). At one point in the meeting we shared a photo of dust emissions from Southdown, and we shared our concerns about how these emissions might be a threat to our health and to the quality of life in our community. A Boulder County Commissioner who attended the meeting seemed surprised to learn that Southdown had submitted a permit application for increased PM-10 discharges. It seems that very few citizens, if any, were aware of this application.

It appears that there is a terrible irony here. For the last several months, citizens in this community have been working with the local, state and federal governments and Southdown Corporation to reduce fugitive dust emissions from Southdown's baghouse disposal site. That was finally accomplished when the company complied with a directive from the CDPHE to cover the dust so that it was not exposed to the wind. Next, Southdown installed a water spray system to contain dust in the new disposal site. That was accomplished. But while these positive steps were being taken to reduce fugitive dust emissions, Southdown was presumably preparing a permit application to increase production and to discharge an additional 10 tons of PM-10 particulates into the community's atmosphere!

The increase of particulate emissions in Southdown's permit application is of great concern to the community of the St. Vrain valley. Again, Mr. Seetharam, this permit application warrants a public meeting to be held in this community. We also feel that the permit application may be in violation of provisions in the Boulder County Land Use Code:

4-602 (A)(7) Traffic congestion or traffic hazards

4-602 (A)(8) Air, odor, water or noise pollution

4-602 (A) (11) Detrimental to the health, safety, or welfare of the present or future inhabitants of Boulder County

Sincerely,

for Richard Cargill

St. Vrain Valley Community Watchdogs' Steering Committee

Mailing Address:

St. Vrain Valley Community Watchdogs

P.O. Box 82

Hygiene, Colorado 80533

Phone inquiry: Ms. Sidna Leavenworth 303 651-3782

Mr. Richard Cargill 303 772-4267

Ms. Ellen 303 823-6336

cc: **PLEASE HELP US!**

Vice President Al Gore

Senator Ben Nighthorse Campbell

Governor Roy Romer

Representative David Skaggs

Senator Terry Phillips

Senator Sally Hopper

Representative Todd Saliman

Regional Administrator, William P. Yellowtail, U. S. Environmental Protection Agency

Mr. Richard Long, Director of Air Program, United States Environmental Protection Agency

Ms. Leona Stoecker, Mayor of Longmont

Mr. Nick Angelo, Mayor of Lyons

Mr. Robert Brady, Chairman, Air Quality Control Commission

Mr. Doug Lempke, Air Quality Control Commission

Mr. Mike Mueller, Air Pollution Control Commission

Mr. Robert Jorgenson, Colorado Department of Public Health & Environment

Mr. Ray Mohr, Colorado Department of Public Health & Environment

Ms. Diana Shannon, Environmental Health Director

Mr. Dave Ouimette, Boulder County Health Department

Mr. Chuck Stout, Executive Director, Boulder County Health Department

Mr. Jeff Zayach, Boulder County Health Department--Environmental Health Program

Mr. Ron Stewart, Ms. Jana Mendez, Mr. Paul Danish, Land Use Commissioners

Mr. Spence Havelick, Boulder City Councilman

Mr. Will Toor, Boulder City Councilman

Mr. Robert Friend, District Manager, Mine Safety Health Administration

Mr. Herb Gibson, Department of Labor, OSHA

Ms. Janine Pryor, American Lung Association

Dr. Kevin Fennelly, Dr. Brian Kotzin, Dr. John Ruddy, Dr. Mark Dilger, Dr. Robert Ballard, National Jewish Medical and Research Center

Director, Boulder Medical Center, Asthma Research Center
Director, Longmont United Hospital, Cancer Hope Center
Longmont United Hospital, Prestigeplus Organization
Director, Boulder Community Hospital, Respiratory Disease Research Center
✓ Mr. Carl Mount, Division of Minerals and Geology
Ms. Monica Piergrossi, Colorado Environmental Coalition
Ms. Vickie Patton, Environmental Defense Fund Attorney
Mr. John Martin, Environmental Defense Fund
Mr. John Moore, Environmental Attorney, Washington D.C.
Mr. Ken Lloyd, Director, Regional Air Quality Control
Mr. Dave Root & Ms. Janet Root, Table Mountain Association
Mr. Eric Frankowski, Daily Times - Call
Mr. Jeremy Breningstall and Mr. Richard Fleming, Boulder Weekly
Mr. Guy Kelly, Rocky Mountain News
Director, Land and Water Fund of the Rockies
Ms. Katy Human, Boulder Camera
Mr. Wayne Stone, Hygiene Elementary School and Parents' Association
Sierra Club
National Audubon Society
Mr. John Martin, St. Vrain Valley Bee Keepers Association
Mr. Thad Johnson, St. Vrain Valley Organic Farming Association
Ms. Jennifer Ellen, Stonebrige Farming Cooperative